

EXTREMELY HIGH RISK VENDOR MASTER AGREEMENT

This Extremely High Risk Vendor Master Agreement ("Agreement") is entered into on this ____ day of _____, 20____, by and between: Buyer/Principal:

Address:

AND Vendor:

Address:

This Agreement governs the provision of goods and/or services classified as EXTREMELY HIGH RISK, including but not limited to regulated products, hazardous materials, financial instruments, high-volatility assets, controlled technologies, data-sensitive services, or any activity carrying substantial legal, regulatory, operational, or reputational exposure.

1. Absolute Regulatory Compliance: Vendor warrants full compliance with all international, national, state, and local laws, licenses, export controls, sanctions regimes, and regulatory frameworks. Any violation constitutes material breach.

2. Unlimited Indemnification: Vendor shall fully indemnify, defend, and hold harmless Buyer, its directors, officers, employees, affiliates, and agents from ANY and ALL claims, penalties, fines, regulatory actions, criminal liabilities, civil damages, losses, or reputational harm arising directly or indirectly from Vendor activities.

3. Personal Liability Clause: Vendor representatives signing this Agreement accept joint and several personal liability in cases of fraud, gross negligence, regulatory breach, or willful misconduct.

4. Mandatory Insurance: Vendor must maintain high-limit insurance coverage including product liability, cyber liability, professional indemnity, and environmental liability. Proof of coverage must be provided annually.

5. Audit & Inspection Rights: Buyer retains unrestricted rights to conduct announced or unannounced audits, inspections, compliance reviews, and third-party investigations at Vendor premises.

6. Immediate Suspension & Termination: Buyer may suspend operations or terminate this Agreement immediately upon suspected non-compliance, risk escalation, regulatory inquiry, or reputational threat.

7. Data & Cybersecurity Obligations: Vendor shall implement enterprise-grade encryption, access controls, monitoring, and breach notification within 24 hours of discovery.

8. Financial Penalties: Vendor agrees to liquidated damages for breach, regulatory fines pass-through, and recovery of all legal costs incurred by Buyer.

9. Force Majeure Limitation: Force majeure shall NOT excuse non-compliance with safety, regulatory, or data protection obligations.

10. Dispute Resolution & Jurisdiction: All disputes shall be resolved via binding arbitration under the governing jurisdiction specified below.

11. Governing Law: This Agreement shall be governed by the laws of _____.

12. Survival: Indemnity, confidentiality, liability, and compliance obligations shall survive termination indefinitely.

RISK ACKNOWLEDGMENT: Vendor expressly acknowledges the extreme risk nature of the goods/services and accepts full responsibility for all foreseeable and unforeseeable consequences arising therefrom. IN WITNESS WHEREOF, the parties execute this Agreement: Buyer Signature:

_____ Date: _____ Name & Title:

_____ Vendor Signature: _____ Date:

_____ Name & Title: _____